



CHAPTER cxiii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Bradford Brighton Buxton Fulwood Gravesend Leek Manchester Neath Paignton and the Whitchurch and District Joint Hospital District. A.D. 1920.
[4th August 1920.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920. Short title.

A.D. 1920.

SCHEDULE.

CITY OF BRADFORD.

*Bradford
Order (2).*

*Provisional Order for partially repealing and altering
the Bradford Corporation Act 1903 the Bradford Corporation
Act 1910 the Bradford Corporation Act 1913 and a
Confirming Act.*

To the Lord Mayor Aldermen and Citizens of the City of
Bradford;—

And to all others whom it may concern.

WHEREAS the City of Bradford (hereinafter referred to as “the
City”) is an Urban Sanitary District of which the Lord Mayor
Aldermen and Citizens acting by the Council (hereinafter referred
to as “the Corporation”) are the Urban Sanitary Authority;

3 Edw. 7.
c. ccxxxiii.

10 Edw. 7. &
1 Geo. 5.
c. cxvii.
3 & 4 Geo. 5.
c. xcvi.
6 & 7 Geo. 5.
c. xxvii.

And whereas the unrepealed provisions of the Bradford Corpora-
tion Act 1903 (hereinafter referred to as “the Act of 1903”) the
Bradford Corporation Act 1910 (hereinafter referred to as “the Act
of 1910”) and the Bradford Corporation Act 1913 (hereinafter referred
to as “the Act of 1913”) as altered by the Bradford Order 1916
which was confirmed by the Local Government Board’s Provisional
Orders Confirmation (No. 1.) Act 1916 (hereinafter respectively referred
to as “the Order of 1916” and “the Confirming Act of 1916”) and
by certain other Provisional Orders duly confirmed by Parliament
which do not affect the subject-matter of this Order are in force in the
City;

55 & 56 Vict.
c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas by Section 49 of the Act of 1903 provision is made
with respect to the rate or addition to a rate leviable for the purposes
of the Public Libraries Acts 1892 to 1901 in the City;

And whereas by Section 53 of the Act of 1910 as amended and
extended by Sections 72 and 73 of the Act of 1913 provision is
made with respect to the prevention of smoke and the emission of
grit or gritty particles from chimneys within the City and by sub-
section (8) of the said Section 53 as altered by the Order of 1916 it
is provided that the provisions of the said Section as so amended and
extended shall cease to be operative at the expiration of a period of
ten years from the First day of August One thousand nine hundred
and eleven unless extended by Parliament;

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

And whereas by Section 57 of the Act of 1913 provision is made for the removal to hospital in certain circumstances of persons suffering from pulmonary tuberculosis and by subsection (6) of the said Section it is provided that the provisions of the said Section shall cease to be in force at the expiration of five years from the date of the passing of the Act of 1913 unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament;

A.D. 1920.

Bradford
Order. (2).

And whereas the powers and duties of the Local Government Board have been transferred to the Minister of Health;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to partially repeal alter or amend the Act of 1903 the Act of 1910 the Act of 1913 and the Confirming Act of 1916 so far as it relates to the Order of 1916 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1903 the Act of 1910 the Act of 1913 and the Confirming Act of 1916 so far as it relates to the Order of 1916 shall be partially repealed and altered so that the following provisions shall take effect namely:—

Art. I. Section 49 of the Act of 1903 is hereby repealed.

Repeal of Section 49 of Act of 1903.

Art II. The provisions of Section 53 of the Act of 1910 as amended and extended by Sections 72 and 73 of the Act of 1913 and as altered by the Confirming Act of 1916 so far as it relates to the Order of 1916 shall have effect as if the words "fifteen years" were inserted in subsection (8) of the said Section 53 instead of the words "ten years."

Further extension of time for operation of Section 53 of Act of 1910.

Art. III. Notwithstanding anything contained in Section 57 of the Act of 1913 the provisions of that Section shall be in force in the City until the expiration of five years from the date of the Act of Parliament confirming this Order and shall then cease to be in force unless they shall have been continued by Act of Parliament or by Provisional Order made by the Minister of Health and confirmed by Parliament:

Extension of time for operation of Section 57 of Act of 1913.

Provided that the said Section 57 shall have effect so that subsection (1) thereof shall be altered to read as follows:—

"57—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in a highly infectious state and that the lodging or accommodation

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

Bradford
Order (2).

with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken and serious risk is thereby caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by the court if the court thinks fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section."

Publication
of effect of
Order.

Art. IV. Within twenty-one days after the commencement of this Order the Corporation shall cause to be given public notice of the effect of the provisions of Articles II. and III. of this Order by advertisement in the local newspapers and otherwise in such manner as the Corporation think sufficient.

Short title.

Art. V. This Order may be cited as the Bradford Order (No. 2) 1920.

Given under the Official Seal of the Minister of Health this
Twelfth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF BRIGHTON.

Brighton
Order.

*Provisional Order for partially repealing altering and amending
certain Local Acts and Confirming Acts.*

To the Mayor Aldermen and Burgesses of the Borough of
Brighton ; —

And to all others whom it may concern.

WHEREAS the Borough of Brighton (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority ;

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

And whereas there are in force in the Borough the unrepealed provisions of the Brighton Corporation Act 1900 the Brighton Corporation Act 1901 the Brighton Corporation Act 1903 the Brighton Corporation Act 1912 and the Brighton Corporation Act 1913 (all which Acts are hereinafter together referred to as "the Local Acts" and each of which Acts is hereinafter referred to as the Act of the year in which it was passed) as altered by the Brighton Order 1911 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1911 and the Brighton Order 1917 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1917 (each of which Orders and Confirmation Acts is hereinafter referred to as the Order or Confirming Act of the year in which it was made or passed);

A.D. 1920.
Brighton
Order.
 63 & 64 Vict.
 c. xcix.
 1 Edw. 7.
 c. ccxxiv.
 3 Edw. 7.
 c. ccxxv.
 2 & 3 Geo. 5.
 c. lvii.
 3 & 4 Geo. 5.
 c. xlv.
 1 & 2 Geo. 5.
 c. cxli.
 7 & 8 Geo. 5.
 c. xxxv.

And whereas the Corporation in pursuance of the powers conferred by the Act of 1901 acquired the Brighton Aquarium and by Section 18 of the Act of 1901 they are empowered to let the same on lease for a term not exceeding seven years;

And whereas by Section 30 of the Act of 1901 it was enacted that if the street works therein referred to were not completed within ten years from the passing of the Act the powers conferred by the Act in relation thereto should cease except as therein mentioned;

And whereas by Article I. of the Order of 1911 it was provided that Section 30 of the Act of 1901 should have effect as if in relation to the Marine Parade and Madeira Road works the period of twenty years were substituted for the period of ten years;

And whereas by Section 31 of the Act of 1912 as altered by Article I. of the Order of 1917 the Corporation were empowered to demise by lease to be approved by the Board of Trade the right of user of trolley vehicles equipment and of running trolley vehicles by means thereof and the right of user of and of running any motor omnibuses provided by the Corporation under the powers of the Act of 1903 and the Act of 1912 and of demanding and taking in respect of the same the fares rates and charges authorised by the Act of 1912 and the Act of 1903;

And whereas by Section 16 of the Act of 1913 certain additional powers of providing maintaining working and running motor omnibuses were conferred on the Corporation;

And whereas by Section 24 of the Act of 1912 certain powers were conferred on the Corporation to enable them to prevent the obstruction or interference with the working of trolley vehicles by overhanging trees hedges or shrubs;

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

*Brighton
Order.*

And whereas by Section 7 of the Act of 1913 the period limited by the Brighton Hove and District Railless Traction Act 1911 for the completion of the overhead equipment therein mentioned was extended till the Seventh day of August One thousand nine hundred and seventeen and the said period has been further extended from time to time by Orders of the Board of Trade made under the Special Acts (Extension of Time) Act 1915 and the period as further extended will expire on the Seventh day of August One thousand nine hundred and twenty ;

And whereas by Section 54 of the Act of 1912 the Corporation were empowered to borrow by way of temporary loan or overdraft for the purpose of providing temporarily during any financial year for certain current expenses but by subsection (2) of the said Section it was provided that the provisions of that Section should cease to be in force at the expiration of five years from the Thirty-first day of March One thousand nine hundred and thirteen unless they should have been continued in manner therein mentioned and the said provisions of Section 54 have from time to time been continued by Orders made by the Local Government Board under the Special Acts (Extension of Time) Act 1915 ;

And whereas Section 57 of the Act of 1912 provides for the recovery of any demand made under the authority of that Act by proceedings in the appropriate County Court ;

And whereas by Section 17 of the Act of 1913 the Corporation were empowered to purchase certain lands therein referred to as "the East Brighton Estate" and also with the approval of the Local Government Board to purchase by agreement any additional lands adjoining the East Brighton Estate which might be conveniently held therewith ;

And whereas the Corporation desire power to purchase by agreement certain land in the neighbourhood of the East Brighton Estate which said land can conveniently be held with the East Brighton Estate but does not adjoin the same ;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to partially repeal alter and amend the Local Acts as altered as aforesaid in the manner hereinafter set forth :

38 & 39 Vict.
c. 55. Now therefore the Minister of Health in exercise of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

Order the Local Acts and the Confirming Acts shall be repealed altered and amended so that the following provisions shall have effect that is to say:—

A.D. 1920.

*Brighton
Order.*

Art. I. Section 18 of the Act of 1901 shall have effect as if—

Leasing of
Brighton
Aquarium.

- (a) the words “for the purposes or uses mentioned in Section 17
“ of this Act or such other purposes or uses as shall be
“ deemed by the Corporation to be in the best interests
“ of the inhabitants of the Borough ” were inserted after
the words “connected therewith”;
- (b) the words “sixty years” were substituted therein for the
words “seven years”; and
- (c) the words “provided however that no lease shall be granted for
a period exceeding seven years without the consent of the
Minister of Health” were added at the end of the section.

Art. II.—(1) Section 30 of the Act of 1901 as altered by the Order of 1911 shall be further altered and shall have effect as if in relation to the Marine Parade and Madeira Road works the words “thirty years” were substituted in that section for the words “ten years.”

Extension of
time for com-
pletion of
street works.

(2) So much of the Confirming Act of 1911 as relates to the Order of 1911 is hereby repealed.

Art. III. Section 24 of the Act of 1912 shall have effect as if the words “or omnibuses of the Corporation or their lessees” were inserted therein immediately after the words “the trolley vehicles” in both places where the latter words are used.

Extension to
omnibuses of
powers to
prevent ob-
struction &c.

Art. IV. Section 7 of the Act of 1913 shall have effect as if the year “One thousand nine hundred and twenty-five” were mentioned therein instead of the year “One thousand nine hundred and seven-teen.”

Extension of
time for com-
pletion of
overhead
equipment.

Art. V. Section 54 of the Act of 1912 shall have effect as if in subsection (2) of that Section the words “twelve years” were substituted for the words “five years.”

Extension of
provisions as
to overdraft.

Art. VI.—(1) Section 57 of the Act of 1912 shall have effect as if the words “or any other Local Act for the time being in force in the Borough” were inserted therein immediately after the word “enactment”.

Recovery of
demands.

(2) Section 88 of the Act of 1900 and Section 67 of the Act of 1903 are hereby repealed.

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Orders Confirmation (No. 6) Act, 1920.*

A.D. 1920. Art. VII. Sections 17 and 25 of the Act of 1913 shall have
effect as if—

*Brighton
Order.*
Acquisition
of lands in
neighbour-
hood of East
Brighton
Estate.

- (1) in subsection (1) of Section 17 the words "or in the neighbourhood of" were inserted therein after the word "adjoining";
- (2) in Section 25 (b) (5) the words "or in the neighbourhood of" were inserted after the word "adjoining";
- (3) in Section 25 (b) (6) the words "or additional lands mentioned in subsection (b) (5) hereof" were inserted after the words "East Brighton Estate".

Short title. Art. VIII. This Order may be cited as the Brighton Order 1920.

Given under the Official Seal of the Minister of Health this
Tenth day of May One thousand nine hundred and twenty.

(L.S.)

CHARLES KNIGHT
Assistant Secretary Ministry of Health.

BOROUGH OF BUXTON.

*Buxton
Order.*

*Provisional Order for altering the Buxton Urban District
Council Water Act 1902 and the Buxton Urban
District Council Act 1904.*

To the Mayor Aldermen and Burgesses of the Borough of
Buxton;—

And to all others whom it may concern.

55 & 56 Vict.
c. cxliv.
2 Edw. 7.
c. cxxv.
4 Edw. 7.
c. ccxxiv.

6 & 7 Geo. 5.
c. xxvii.

WHEREAS, the Borough of Buxton (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 and the unrepealed provisions of the Buxton Local Board Act 1892 the Buxton Urban District Council Water Act 1902 and the Buxton Urban District Council Act 1904 (each of which Acts is hereinafter separately referred to as the Act of the year in which it was passed and all which Acts are hereinafter collectively referred to as "the Local Acts") as altered by the Buxton Order 1916 (hereinafter referred to as "the Order of 1916") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1916 are in force in the Borough;

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

And whereas by Section 4 of the Act of 1904 the Agreement which was scheduled to that Act and made between the Most Noble Spencer Compton Duke of Devonshire K.G. and the Urban District Council of Buxton (who were the predecessors of the Corporation) for the sale and purchase of the lands and premises therein described including the mineral water baths of Buxton was confirmed and made binding upon the parties ;

A.D. 1920.

*Buxton
Order.*

And whereas by the said Agreement provision was made as part consideration for the lands and premises as purchased for the payment to the said Duke of a yearly rentcharge of Two thousand four hundred and twenty-six pounds payable by half-yearly instalments for a period of sixty years ;

And whereas by the Agreement set forth in the Schedule to this Order (hereinafter referred to as "the Scheduled Agreement") it is provided that subject to the terms and conditions set forth therein relating to the expenditure of moneys in the improvement of the mineral water baths and in advertising the attractions of the Borough and of such baths and otherwise the payment of the yearly rentcharge shall be suspended for and during the period of five years between the end of the Twenty-fifth day of March One thousand nine hundred and twenty and the end of the Twenty-fifth day of March One thousand nine hundred and twenty-five and it is expedient that the Scheduled Agreement should be confirmed by this Order and that provision should be made for raising during the residue of the original term of sixty years of sufficient moneys to make the payments (hereinafter referred to as "the deferred payments of the rentcharge") which will become due in respect of the rentcharge during the five years following the said original term ;

And whereas by Section 13 of the Act of 1892 and Section 15 of the Act of 1904 provision was made for advertising the pump room and mineral water baths of the Borough and the waters used therein and by Section 27 of the Act of 1904 as altered by Article II. of the Order of 1916 with regard to the application of the revenue of the mineral baths undertaking ;

And whereas by virtue of Section 49 of the Act of 1902 an annual return is required to be made to the Minister of Health as to the provision made for the repayment of moneys raised under that Act and repayable by means of a sinking fund or otherwise in pursuance of the provisions of that Act ;

And whereas under Section 19 of the Act of 1902 the Corporation are empowered to acquire by agreement additional lands for the purposes of their water undertaking but may not under the powers of that section hold at any time more than thirty acres of land ;

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

Buxton
Order.

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Acts in the manner hereinafter set forth :

38 & 39 Vict.
c. 55.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say :—

Confirmation
of Scheduled
Agreement.

Art. I. The Scheduled Agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective seals and the provisions of Sections 4 to 7 of the Act of 1904 relating to the Agreement confirmed by that Act shall be read as applying to that Agreement as varied by the Scheduled Agreement :

Provided that the terms and conditions of the Scheduled Agreement relating to the advertisement of the attractions of the Borough and of the mineral water baths therein shall have effect and be subject to the provisions of Section 13 of the Act of 1892 and Section 15 of the Act of 1904.

Sinking fund
for payment
of deferred
rentcharge.

Art. II.—(1) In order to provide for the deferred payments of the rentcharge the Corporation shall establish and maintain a sinking fund and shall annually pay into such fund throughout a period commencing on the twenty-fifth day of March One thousand nine hundred and twenty-five and ending on the twenty-fifth day of March One thousand nine hundred and sixty-four such equal annual sums as with accumulations at a rate of three and one half per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to provide for the deferred payments of the rentcharge.

(2) Section 27 of the Act of 1904 as altered as aforesaid shall be further altered so that the paragraph thereof commencing with the word "Secondly" shall be read and have effect as if it required the application of the revenue of the mineral baths undertaking in payment of the contributions to be made to the sinking fund established under the provisions of subdivision (1) of this Article as well as in payment of the annual rentcharge therein referred to.

(3) Section 49 of the Act of 1902 relating to the return to be made respecting the provision for the repayment of moneys raised under that Act shall apply and have effect in relation to the sinking fund to be established under the provisions of sub-division (1) of this

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

Article as if the same were herein re-enacted and in terms made applicable thereto. A.D. 1920.

*Buxton
Order.*

Art. III. Section 19 of the Act of 1902 shall have effect and shall be deemed to have always had effect as if the words "fifty acres of land" had been inserted in the proviso to that Section instead of the words "thirty acres of land." Additional lands for water undertaking.

Art. IV. This Order may be cited as the Buxton Order 1920 and the Buxton Order 1916 and this Order may be cited together as the Buxton Orders 1916 and 1920. Short titles.

The SCHEDULE above referred to.

MEMORANDUM of AGREEMENT made this eleventh day of December One thousand nine hundred and nineteen BETWEEN THE MOST NOBLE VICTOR CHRISTIAN WILLIAM DUKE of DEVONSHIRE K.G. (hereinafter called the Vendor) of the one part and the MAYOR ALDERMEN AND BURGESSES of the BOROUGH of BUXTON in the County of Derby (hereinafter called the Corporation) of the other part WITNESSETH AND IT IS HEREBY AGREED AND DECLARED as follows:—

1. These presents are executed pursuant to an Agreement in this behalf lately come to between the parties hereto and for the consideration herein appearing.

2. In these presents the following expressions shall have the following meanings namely:—

"The deed" shall mean an Indenture dated the first day of January One thousand nine hundred and five and made between the Most Noble Spencer Compton Duke of Devonshire of the first part Francis Drewry of the second part and the Urban District Council of Buxton aforesaid being a Conveyance on Sale to the said Council of the Mineral Water Baths at Buxton aforesaid.

"The Act" means the Buxton Urban District Council Act 1904.

"The rentcharge provision" means the following words in Clause 3 of the Deed and also in Clause 3 of the form of Conveyance set out in the First Schedule to the Act namely:—

"To the use that the Duke his executors administrators
" and assigns shall receive a yearly rentcharge of Two thousand four hundred and twenty-six pounds representing

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Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

Buxton
Order.

“ instalments of mixed principal and interest sufficient to
“ discharge in sixty years from the date hereof the said sum
“ of Fifty-five thousand pounds with interest at the rate of
“ four pounds per centum per annum on the purchase money
“ from time to time remaining unpaid such rentcharge to
“ commence from the date of these presents and to be
“ charged upon and issuing out of all the lands buildings
“ and corporeal hereditaments hereby conveyed and to be
“ payable for sixty years from the date of these presents by
“ equal portions half yearly on the twenty-fifth day of March
“ and the twenty-ninth day of September in every year
“ without any deduction except for property tax as hereinafter
“ provided the first payment to be made on the first half
“ yearly day for payment after the date of these presents and
“ the last payment to be made on the sixtieth anniversary of
“ the date of these presents and such first and last payments
“ to be if necessary apportioned ~~sums~~ in respect of broken
“ periods of less than half a year and subject to and charged
“ with the said rentcharge and all powers and remedies
“ given by law or any statute or by these presents for
“ securing the same.”

3. The deed and the Act shall henceforth read operate and take effect as if both in Clause 3 of the Deed and in Clause 3 of the form of Conveyance set out in the first Schedule to the Act the following words had originally been inserted in lieu of the rentcharge provision namely : —

“ To the use that the Duke his executors administrators and
“ assigns shall receive a yearly rentcharge of Two thousand four
“ hundred and twenty-six pounds representing instalments of mixed
“ principal and interest sufficient to discharge in sixty years from
“ the date hereof the said sum of Fifty-five thousand pounds with
“ interest at the rate of Four pounds per centum per annum on
“ the purchase money from time to time remaining unpaid such
“ rentcharge to commence from the date of these presents and to
“ be charged upon and issuing out of all the lands buildings and
“ corporeal hereditaments hereby conveyed and to be payable for
“ sixty-five years from the date of these presents except for and
“ during the period of Five years between the end of the twenty-
“ fifth day of March One thousand nine hundred and twenty and
“ the end of the Twenty-fifth day of March One thousand nine
“ hundred and twenty-five by equal portions half yearly on the
“ twenty-fifth day of March and the twenty-ninth day of September
“ in every year (except during the aforesaid period of five years)
“ without any deduction except for property tax as hereinafter

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
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“ provided the first payment to be made on the first half yearly
“ day for payment after the date of these presents and the last
“ payment to be made on the sixty-fifth anniversary of the date
“ of these presents and such first and last payments to be if
“ necessary apportioned sums in respect of broken periods of less
“ than half a year And subject to and charged with the said
“ rentcharge and all powers and remedies given by law or any
“ statute or by these presents for securing the same.”

A.D. 1920.

—
Buxton
Order.

4. The Corporation undertakes with the Duke that the Corporation will as soon as practicable and in any event before the expiration of the aforesaid period of five years expend at least fifteen thousand pounds in renovating and improving the mineral water baths at Buxton aforesaid.

5. The Corporation undertakes with the Duke that the Corporation will in each and every year during the aforesaid period of five years expend at least five hundred pounds in advertising the attractions of the Town of Buxton and the mineral water baths in the same Town and will at or before the commencement of each and every such year submit to the Duke or his agent a full statement of the manner in which it is proposed, that the said sum of five hundred pounds and any further sum that may be received from the Duke as hereinafter provided shall be expended.

6. Subject to the approval by the Duke of the said proposals such approval to be at the absolute discretion of the Duke the Duke undertakes with the Corporation that the Duke his executors and administrators will at the commencement of each and every year during the aforesaid period of five years pay to the Corporation to be expended in advertising the attractions of the Town of Buxton and the mineral waters in the same Town in accordance with the approved proposals such a sum as shall be not less than one half of the sum expended by the Corporation during the same years pursuant to the undertaking on the part of the Corporation hereinbefore contained but so nevertheless that no sum greater than two hundred and fifty pounds need be paid by the Duke in any year under this covenant.

7. The Corporation undertakes with the Duke that the Corporation will at the end of each and every year during the aforesaid period of five years render to the Duke a true and complete statement of the amounts expended during that year in advertising in pursuance of the two preceding clauses.

8. The Corporation shall on demand pay all costs and expenses incurred by the Duke in connection with the preparation and completion of this Agreement as between solicitor and client such costs and expenses to be taxed in case of difference between the parties

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920. and also in connection with the provisional order and Act of Parliament
Buxton hereinafter respectively referred to whether the same shall be made
Order. and passed or not.

9. Upon the execution of this Agreement the Corporation shall forthwith make application to the Ministry of Health for a provisional order to alter the Act in accordance with the provisions of this Agreement and this Agreement shall be scheduled to and confirmed by the said intended provisional order.

10. This Agreement shall be void unless before the first day of September One thousand nine hundred and twenty or such later date as the parties hereto may in writing agree to an Act of Parliament is passed confirming the said intended provisional order and giving full effect to the provisions of this Agreement and making the same binding on the Corporation and otherwise of full legal force and effect.

IN WITNESS whereof the vendor has hereunto set his hand and seal and the Corporation have caused their Corporate Seal to be hereunto affixed the day and year first above written.

Original executed thus:—

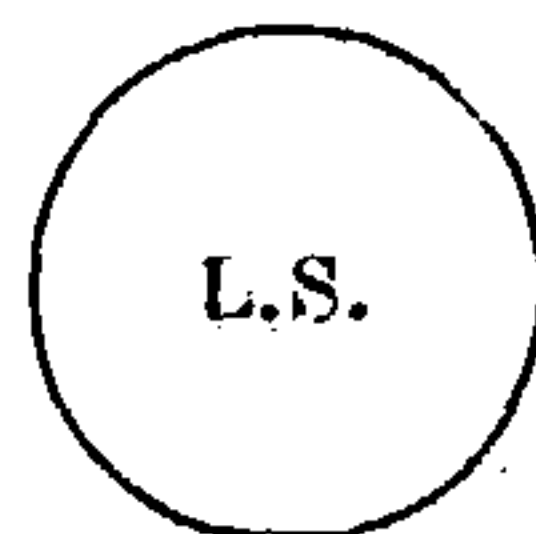
Signed sealed and delivered by the said Victor	}	DEVONSHIRE
Christian William Duke of Devonshire by		by his Attorney
his Attorney Lord Richard Frederick		RICHARD F. CAVENDISH
Cavendish in the presence of		(L.S.)

ARTHUR H. BATTCOOK
14 Great George Street
Westminster Solicitor.

Duplicate executed thus:—

The Common Seal of the Corporation was }
hereunto affixed in the presence of }

W. F. MILL
Deputy Mayor.
J. BASIL OGDEN
Town Clerk.



Given under the Official Seal of the Minister of Health this
Eighth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF FULWOOD.

A.D. 1920.

*Provisional Order for altering the Fulwood and Whittingham
Water Act 1882 the Fulwood Local Board Act 1885 and
the Fulwood Local Board (Water) Act 1894.*

*Fulwood
Order.*

To the Urban District Council of Fulwood ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Fulwood (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Fulwood (hereinafter referred to as "the District") ;

And whereas the unrepealed provisions of the Fulwood and Whittingham Water Act 1882 the Fulwood Local Board Act 1885 and the Fulwood Local Board (Water) Act 1894 (each of which Acts is hereinafter separately referred to as the Act of the year in which it was passed and all of which Acts are hereinafter collectively referred to as "the Local Acts") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order are in force in the District ;

45 Vict. c. xi
48 & 49 Vict.
c. xxxv.
57 & 58 Vict.
c. lviii.

And whereas the Council or their predecessors were authorised by the Local Acts to construct waterworks and to supply water for public and private purposes within the limits defined by Section 14 of the Act of 1882 as extended by Section 6 of the Act of 1885 which limits are hereinafter referred to as "the water limits of the Council" and the waterworks include a certain reservoir known as the Barnsfold Reservoir situate in the Township of Goosnargh within the water limits of the Council ;

And whereas the Agreement (hereinafter referred to as "the Scheduled Agreement") set forth in the Schedule to this Order and made between the Right Honourable Edward George Villiers Earl of Derby K.G. and the Right Honourable Edward Montague Cavendish Stanley commonly called Lord Stanley (hereinafter called "the lessors") of the one part and the Council of the other part provides for the grant by the lessors to the Council for the term of 999 years of the exclusive right (a) subject as therein mentioned to take water for supply by the Council throughout the water limits of the Council from a tank to be constructed by the lessors on their estate at or near Saddle End situate in the Township of Chipping in the County Palatine of Lancaster (b) to all water percolating or flowing in

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Orders Confirmation (No. 6) Act, 1920.

A.D. 1920. through under or upon a certain portion of the said estate and to
Fulwood be collected and conveyed by means of pipes and other works to
Order. the said tank and (c) to lay an aqueduct for carrying water from
the said tank for the purposes of the water undertaking of the
Council as more particularly set forth in the Agreement;

And whereas the Council have made application to the Minister
of Health for the issue of a Provisional Order to partially repeal
alter or amend the Local Acts in the manner hereinafter set forth :

38 & 39 Vict. Now therefore the Minister of Health in pursuance of the
c. 55. powers given to him by Section 303 of the Public Health Act 1875
and by any other Statutes in that behalf hereby orders that from and
after the date of the Act of Parliament confirming this Order the
Local Acts shall be altered so that the following provisions shall
take effect that is to say :—

Confirmation of Scheduled Agreement. Art. I. The Scheduled Agreement is hereby confirmed and made
binding upon the parties thereto.

Construction of aqueduct &c. Art. II. Subject to the terms and conditions of the Scheduled
Agreement and of any lease to be executed in pursuance thereof the
Council may construct an aqueduct conduit or line or lines of pipes
in the Townships of Chipping and Goosnargh in the County Palatine
of Lancaster from the tank situate in the said Township of Chipping
to be constructed in pursuance of the Scheduled Agreement to the said
Barnsfold Reservoir and may maintain such works or may perform
such acts as may be necessary to give due effect by them to the terms
of the Scheduled Agreement.

Works &c. to form part of Local Acts water undertaking. Art. III. Any water or other rights acquired by the Council in
pursuance of the Scheduled Agreement and any works constructed by
the Council by virtue of this Order shall be held by the Council as
part of their water undertaking under the Local Acts and the Local
Acts shall apply accordingly.

Application of sections of Public Health Act 1875 in relation to powers given and works authorised by this Order. Art. IV. Sections 54 308 327 to 329 and 332 of the Public Health
Act 1875 shall apply and have effect in relation to any powers and to
any works which the Council may exercise or construct in pursuance of
this Order as if the said Sections were herein re-enacted and in terms
made applicable to the Council and to the said powers and works with
the substitution in the first mentioned section of a reference to the
water limits of the Council for any reference to the district of a local
authority and with such other modifications as may be necessary.

Borrowing powers. Art. V. The purposes of this Order shall be purposes of the Act of
1894 for which the Council may with the sanction of the Minister of
Health borrow money under the provisions of Section 17 of that Act.

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Order.*

Rate of accumulation of annual payments to sinking fund.

Art. VI. Section 20 of the Act of 1894 shall have effect as if the words "three pounds ten shillings per centum per annum or at such other rate as the Minister of Health may from time to time approve" were inserted in subdivision (1) of that section instead of the words "three pounds per centum per annum."

Art. VII.—(1) Section 30 of the Act of 1885 and Section 21 of the Act of 1894 are hereby repealed.

Repeal of sections of Local Acts.

(2) The Council shall have power—

Power to re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under the Local Acts which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under the Local Acts and which at the time of such repayment it was intended to replace by borrowed moneys.

(3) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(4) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(5) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. VIII. This Order may be cited as the Fulwood Order 1920. Short title.

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The SCHEDULE above referred to.

AN AGREEMENT made the Sixth day of May 1920 BETWEEN THE RIGHT HONOURABLE EDWARD GEORGE VILLIERS EARL OF DERBY K.G. (hereinafter called Lord Derby) and THE RIGHT HONOURABLE EDWARD MONTAGU CAVENDISH STANLEY commonly and hereinafter called Lord Stanley of the one part and the URBAN DISTRICT COUNCIL OF FULWOOD in the County of Lancashire (hereinafter called the Council) of the other part WHEREBY it is agreed as follows:—

1. Lord Derby and Lord Stanley (hereinafter together called the Lessors) will under and in exercise of the joint power of appointment contained in a Disentailing Assurance dated the 19th day of October 1916 and made between Lord Derby of the first part Lord Stanley of the second part and Thomas Lawrence Kesteven of the third part grant and the Council will take a grant or lease for the term of 999 years (subject and terminable nevertheless as hereinafter mentioned) from the first day of January one thousand nine hundred and twenty-one of the rights or easements hereinafter mentioned that is to say the exclusive right (subject to the reservation in clause 3 hereof) to take water (but only for the supply of the limits of supply of the Council) from a tank to be constructed by the Lessors at or near the point A on the plan No. 1 hereto annexed on the Estate at or near Saddle End in the Township of Chipping in the County of Lancaster which with other hereditaments is included in and assured by the said Disentailing Assurance and the exclusive right (subject to the reservation in clause 3 hereof) to all water from time to time during the said term percolating or flowing in through under or upon the portion of the estate coloured red on the said plan No. 1 and the right (subject as aforesaid) to have the same collected and led by means of the drains pipes and other works constructed or to be constructed by Lord Derby to the said tank or any other tank which may during the said term with the consent in writing of the Council be substituted for the said tank and also the right subject as aforesaid from time to time to lay use renew maintain and repair a single line of pipes or aqueduct not exceeding nine inches in diameter in and through the said estate between the points A and B and C and D on the said plan No. 1 and E and F on the plan No. 2 hereunto annexed for the purpose of carrying water from the said tank or any such substituted tank as aforesaid for the purposes of the Water Undertaking of the Council for the payments and subject to the terms and conditions hereinafter mentioned.

2. The water supplied to the Council shall be measured by a suitable meter (to be approved by the Council) to be provided and maintained and where necessary adjusted by the Lessors such meter to be fixed in a suitable lock-up building to be erected and maintained by the Lessors at a point to be agreed upon near the said tank and to be accessible only by means of two keys of which each of them the Lessors and the Council shall have and keep one The register of the meter so to be provided shall be prima facie evidence of the amount of water taken by the Council The Council shall at all times have the right to enter the said building and to examine and test the said meter.

3. The Lessors reserve the right at all times during the said term to retain for their own use and for the use of others to whom they or either of them may supply the same such quantity of water collected in the said tank as he or they may

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require not exceeding six million gallons in any year. The Lessors also reserve the right to retain for the use of themselves and others all surplus water which the Council may at any time during the said term not require.

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Order.*

3a. The Lessors shall construct and complete to the satisfaction of the Council a suitable tank at the point marked A on the said plan No. 1. The tank when constructed shall be cleansed and kept cleansed maintained and when necessary renewed by the Council who shall have such access to the said tank and rights of entry on the lands adjacent thereto as may be necessary or desirable for the purposes of such cleansing maintenance and renewal. The Lessors shall lay down and construct such pipes and other works as shall be necessary to conduct to the said tank the waters collected by the drains pipes and other works constructed by Lord Derby on the part of the said estate coloured red on the said plan. The Lessors shall also at all times during the said term maintain and when necessary cleanse repair and renew the drains pipes and other works constructed or laid down or to be constructed or laid down by Lord Derby or the Lessors for collecting and leading water from the said part of the said estate coloured red on the said plan No. 1 and conducting the same to the said tank or any tank substituted therefor as aforesaid. Provided nevertheless and it is hereby agreed and declared that the Lessors shall not in any manner or under any circumstances (other than such as may arise from the wilful acts of themselves or any person claiming under them or either of them) be liable or accountable for the quantity or the continued or other supply of the water taken or authorised to be taken by the Council but the Lessors and every person claiming under them or either of them shall use their and his best endeavours to prevent the contamination or interruption of such water by any other person.

4. The Council shall pay for the premises hereby agreed to be leased or granted at the following rates:—

For any quantity taken in any year of the said term not exceeding eight million gallons after the rate of sixpence per thousand gallons.

For any quantity taken in any year of the said term in excess of eight million gallons and not exceeding sixteen million gallons after the rate of fivepence halfpenny per thousand gallons.

For any quantity taken in any year of the said term in excess of sixteen million gallons and not exceeding twenty-four million gallons after the rate of fivepence per thousand gallons.

For any quantity taken in any year of the said term in excess of twenty-four million gallons and not exceeding thirty-two million gallons after the rate of four pence halfpenny per thousand gallons.

For any quantity taken in any year of the said term in excess of thirty-two million gallons after the rate of fourpence per thousand gallons.

As from the said 1st day of January 1921 or from the date of the completion of the works hereby agreed to be executed by the Lessors (whichever shall be the later) the Council shall pay a minimum sum or payment of 200*l.* in every year of the term notwithstanding that the payments at the rates aforesaid for the water actually taken by the Council may be less than 200*l.* in any year and the first payment which shall be a proportionate part of the said yearly minimum sum calculated from the said 1st day of January 1921 or from the date of such completion of the works as aforesaid (whichever shall be the later) shall become due and payable and be made on the 1st day of January 1921 or at the date of such completion of the works as aforesaid:

Provided that if the quantity of water which the Council could have taken under or by virtue of the easements or rights hereinbefore mentioned shall not

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Order.*

have amounted to eight million gallons the minimum sum or payment of 200*l.* shall for such year be reduced to such sum as shall bear to the quantity of water which the Council would have taken in such year the same proportion as the sum of 200*l.* bears to eight million gallons.

5. The Council shall pay all rates taxes and assessments (except landlords property tax) payable during the said term in respect of the premises hereby agreed to be leased.

6. The Council shall in laying their said pipes place aside all productive soil and replace the same uppermost on the land from which such soil shall have been taken so as to restore the surface as nearly as possible to its original level and condition and the said pipes shall be laid at a depth of not less than three feet below the surface of the land.

7. The Council shall reconstruct and make good all roads watercourses drains and fences injured or interfered with in laying their said pipes.

8. The Council shall compensate the tenants or occupiers of the lands through which the said pipes shall be laid for all surface damage which may be occasioned by or arise from the construction or maintenance of the said pipes.

9. The Council shall pay the costs charges and expenses of the Lessors' solicitors of and incidental to the negotiations for this Agreement and shall also pay a sum not exceeding 50*l.* toward the costs charges and expenses of their Engineer incidental thereto and shall also pay the costs and charges attending the preparation and execution of this Agreement and a duplicate thereof and of the Lease and Counterpart Lease to be granted in pursuance hereof.

10. If the Council shall be desirous of determining the term hereby agreed to be granted at the end of the 30th year of the term and of such desire shall give to the Lessors or their Agent at least a year's previous notice in writing and shall with such notice pay to the Lessors a sum of 1,000*l.* as compensation then and in such case at the end of such 30 years the term hereby agreed to be granted shall cease but subject and without prejudice to the rights and remedies of the Lessors in respect of any rent in arrear or any breach of any of the covenants by the Council in the said Lease contained and the Council shall pay all the Lessors' costs and charges incidental to the surrender of the said Lease and shall also pay and discharge the Reversion Duty (if any) and all other duties and taxes payable on the termination of the Lease.

11. The Lease to be granted in pursuance of this Agreement shall contain all such other covenants clauses provisoes and agreements on the part of the Council as are usually inserted in Leases of a like nature and also a Covenant by the Lessors for the quiet enjoyment by the Council of the easements hereinbefore mentioned and also such covenants clauses provisoes and agreements as shall be necessary to give effect to the conditions of this Agreement and for carrying out the arrangements hereby made. The form and contents of the Lease in case of difference shall be settled by some Conveyancing Counsel to be agreed upon between the parties or appointed in case of a difference by the President for the time being of the Law Society.

12. This Agreement is subject to the Council obtaining by Act or Provisional Order all such powers as they require to enable the same to be carried into effect the Council may if they so desire cause this Agreement to be scheduled to any such Act or Provisional Order to be applied for by the Council this Agreement is subject to all such alterations as Parliament may make therein but in the event of either House of Parliament making any material alteration in this Agreement it

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shall be in the option of the Lessors and the Council or either of them to withdraw from the same and in such case or if the Council shall fail to obtain an Act or Provisional Order confirmed by Parliament conferring on them all such powers as they require to enable the same to be carried into effect within two years from the date hereof this Agreement shall be void.

A.D. 1920.

*Fulwood
Order.*

13. In these presents and in the Lease to be granted in pursuance hereof the expression "the Lessors" shall mean and include Lord Derby and Lord Stanley and the person or persons for the time being entitled to receive the rents or payments mentioned in clause 4 hereof and the rents or payments to be reserved and made payable by the said Lease and the expression "the Council" shall mean and include the Council and the owners or owner for the time being of the Water Undertaking of the Council.

IN WITNESS whereof Lord Derby and Lord Stanley have hereunto set their hands and the Council have hereunto affixed their Common Seal the day and year first before written.

STANLEY

WINDHAM E. HALE

Agent for the Earl of Derby.

Passed under the Common Seal of the Urban District Council of Fulwood pursuant to Resolution in the presence of

WM. O. JONES

Chairman

ARNOLD BRIERLEY

Clerk to the Council.

L.S.

Given under the Official Seal of the Minister of Health this
Thirteenth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF GRAVESEND.

*Provisional Order for partially repealing and altering the
Gravesend Improvement Act 1856 and the Local Government
Board's Provisional Orders Confirmation Act 1874 (No. 3).*

*Gravesend
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Gravesend ;—

And to all others whom it may concern.

WHEREAS the Borough of Gravesend (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban District Council and the local authority

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A.D. 1920. within the meaning of the Public Health Act 1875 and there are in
Gravesend force in the Borough the unrepealed provisions of the Gravesend
Order. Improvement Act 1856 (hereinafter referred to as "the Local Act") as
 19 & 20 Vict. altered by a Provisional Order made on the Twenty-third day of May
 c. xxvi. One thousand eight hundred and seventy-four by the Local Govern-
 37 & 38 Vict. ment Board which was confirmed by the Local Government Board's
 c. lxxxix. Provisional Orders Confirmation Act 1874 (No. 3) (which Order and
 Act are hereinafter referred to as "the Order" and "the Confirming
 Act");

And whereas by Section 24 of the Local Act provision was made
 with respect to the audit of the accounts of the Gravesend Improvement
 Commissioners;

And whereas by the Order all the powers of the Gravesend
 Improvement Commissioners except the powers of making a rate under
 the Local Act were transferred to the Corporation;

And whereas the Corporation have applied to the Minister of
 Health for the issue of a Provisional Order partially to repeal and
 alter the Local Act and the Confirming Act in manner hereinafter
 appearing:

38 & 39 Vict. Now therefore the Minister of Health in pursuance of the powers
 c. 55. given to him by Sections 297 and 303 of the Public Health Act 1875
 and of all other powers enabling him in that behalf hereby orders
 that from and after the date of the Act of Parliament confirming
 this Order the Local Act and the Confirming Act shall be partially
 repealed and altered so that the following provisions shall take effect
 that is to say:—

Audit of
 Borough
 accounts.

Art. I.—(1) Notwithstanding anything in the Local Act or the
 Confirming Act all accounts of the Corporation and of the treasurer
 of the Borough and of the officers of the Corporation under any
 public or private Act of Parliament or otherwise relating to matters
 dealt with by the Corporation in any capacity and including the
 accounts of any joint committee and of the officers of any joint com-
 mittee appointed by the Corporation with the council of another
 borough or with a County Council or with a District Council or a
 Parish Council shall be audited by a district auditor appointed by
 the Minister of Health in like manner as accounts of an urban
 authority and their officers are audited under Sections 247 and 250
 of the Public Health Act 1875 and those sections and all enactments
 amending them or applying to audit by district auditors including
 the enactments imposing penalties and providing for the recovery of
 sums as well as all enactments relating to matters incidental to or
 consequential upon any such accounts or audit shall apply in like

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manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

A.D. 1920.

*Gravesend
Order.*

Provided that for the purposes of this Article the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) Nothing in subdivision (1) of this Article shall apply to the audit of the accounts of the Corporation for the financial year ended the Thirty-first day of March One thousand nine hundred and twenty.

(3) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(b) Pay the reasonable expenses of the Corporation in connexion with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough.

Art. II. This Order may be cited as the Gravesend Order 1920. Short title.

Given under the Official Seal of the Minister of Health this
Twelfth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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A.D. 1920.

URBAN DISTRICT OF LEEK.

Leek Order.

*Provisional Order for partially repealing altering and
amending the Leek Improvement Act 1855 and the Local
Government Board's Provisional Orders Confirmation
(Abergavenny Union &c.) Act 1878.*

To the Urban District Council of Leek;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Leek (hereinafter referred to as "the Council") are the Local Authority within the meaning of the Public Health Act 1875 for the Urban District of Leek (hereinafter referred to as "the District");

18 & 19 Vict. c. cxxxii. And whereas there are in force in the District the unrepealed provisions of the Leek Improvement Act 1855 (hereinafter referred to as "the Local Act") as altered by the Leek Order 1878 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Abergavenny Union &c.) Act 1878 (which Order and Act are hereinafter respectively referred to as "the Order" and "the Confirming Act") and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

And whereas by Section 133 of the Local Act as altered by Article I. of the Order the Council or their predecessors were empowered to borrow and reborrow moneys provided that the total amount owing in respect of moneys borrowed under that Section as so altered should not at any time exceed the sum of Fifty thousand pounds;

And whereas on the Thirty-first day of March One thousand nine hundred and twenty there was outstanding the sum of seventeen thousand six hundred and ninety-six pounds twelve shillings and eightpence in respect of moneys borrowed by the Council and their predecessors under the powers hereinbefore recited and that sum and the amount outstanding in respect of any moneys borrowed before the date of the Act of Parliament confirming this Order under those powers are hereinafter referred to as "the existing debt";

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to partially repeal alter and amend the Local Act and the Confirming Act in manner hereinafter appearing.

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Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of any other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act shall be partially repealed altered and amended in manner following that is to say:—

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Leek Order.

38 & 39 Vict.
c. 55.

Art. I.—(1) Sections 133 to 137 of the Local Act and so much of the Confirming Act as relates to the Order shall be repealed.

Repeal of
Local Act and
Confirming
Act.

(2) Nothing in this Order contained shall prejudicially affect any mortgage bond or other security which may have been granted by the Council or their predecessors in respect of the existing debt or the rights and powers of the persons entitled under any such mortgage bond or other security to enforce the same.

Saving for
rights of
mortgagees.

Art. II. The Council may with the sanction of the Minister of Health and subject to the provisions of this Order borrow upon such security as the Minister may prescribe such additional moneys not exceeding in the whole the sum of Seventy-five thousand pounds as may from time to time be required for the purposes of the Local Act as altered by any other Provisional Order amending the Local Act.

Borrowing
powers.

Art. III. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans
Act and certain
provisions of
Public Health
Act made
applicable.

Art. IV. The existing debt shall be repaid within the period or periods within which the same is required to be repaid under the provisions in force at the date of the Act of Parliament confirming this Order. Moneys borrowed under Article II. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Minister of Health in each case determine and each of the said periods is hereinafter referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Period for
repayment of
borrowed
moneys.

Art. V.—(1) The Council shall repay the existing debt and moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
repayment.

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Leek Order.
Formation
maintenance
and appli-
cation of
sinking fund.

(2) Subject to the provisions of Article VI. of this Order if the Council determine to repay by means of a sinking fund the existing debt or any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as may from time to time be approved by the Minister of Health will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(3) The Council shall carry to the credit of the sinking fund established in pursuance of this Article for the repayment of the existing debt any sums standing to the credit of any sinking fund established under the Local Act or the Order.

● (4) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(5) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(6) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking

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fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1920.
Leek Order.

(7)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(8) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Art. VI.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Council shall increase the payments to such extent as the Minister may direct. Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Minister of Health the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Minister approves.

(4) If in the opinion of the Minister of Health the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will be sufficient to repay

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920. the loan in respect of which it is formed within the prescribed period
Leek Order. the Council may with the consent of the Minister discontinue the
equal annual payments to the sinking fund until the Minister otherwise
directs.

Surplus of sinking fund. (5) Any surplus of any sinking fund remaining after the discharge
of the whole of the moneys for the repayment of which it was formed
shall be applied to such purpose or purposes as the Council with the
consent of the Minister of Health may determine.

Power to re-borrow.

Art. VII.—(1) The Council shall have power—

(a) to borrow for the purpose of paying off the existing debt
or any moneys previously borrowed under this Order
which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the
previous twelve months have been temporarily applied
from other funds of the Council in repaying the existing
debt or moneys previously borrowed under this Order
and which at the time of such repayment it was
intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes
of repayment be deemed to form part of the original loan and shall be
repaid within that portion of the prescribed period which remains
unexpired and the provisions which are for the time being applicable
to the original loan shall apply to the moneys borrowed under this
Article.

(3) The Council shall not have power to borrow for the purpose
of making any payment to a sinking fund or of paying any instalment
or making any annual payment which has or may become due in
respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to
replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose
of the repayment other than moneys borrowed for that
purpose.

Application
of borrowed
moneys.

Art. VIII. All moneys from time to time borrowed under this
Order shall be applied by the Council only for the purposes for which
the same are respectively authorised to be borrowed excepting that

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Minister of Health determine. A.D. 1920.
Leek Order.

Art. IX.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. X.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Minister of Health may require such a return to be made transmit to the Minister a return in such form as may from time to time be prescribed by the Minister and if required by the Minister verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Minister may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. Return as to provision for repayment of debt.

(2) If it appears to the Minister of Health by that return or otherwise that the Council have failed to pay any instalment or

[Ch. cxiii.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.*

A.D. 1920. *Leek Order.* annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by the Local Act or by this Order or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Minister may by order direct that the sum in his order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied in such manner as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Inquiries and expenses. Art. XI. Where the Minister of Health causes any local inquiry to be held with reference to any of the purposes of the Local Act or this Order the costs incurred by the Minister in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Minister may determine for the services of any inspector or officer of the Ministry engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

Short title. Art. XII. This Order may be cited as the Leek Order 1920.

Given under the Official Seal of the Minister of Health this
Tenth day of May One thousand nine hundred and twenty.

(L.S.)

CHARLES KNIGHT
Assistant Secretary Ministry of Health.

CITY OF MANCHESTER.

*Manchester
Order.*

*Provisional Order for altering the Manchester Corporation
Waterworks and Improvement Act 1875 the Manchester
Corporation Act 1911 and certain Confirming Acts.*

To the Lord Mayor Aldermen and Citizens of the City of
Manchester; —

And to all others whom it may concern.

WHEREAS the City of Manchester (hereinafter referred to as "the City") is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority;

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.] A.D. 1920.
Orders Confirmation (No. 6) Act, 1920.

*Manchester
Order.*

And whereas the unrepealed provisions of the Manchester Corporation Waterworks and Improvement Act 1875 (hereinafter referred to as "the Act of 1875") and the Manchester Corporation Act 1911 (hereinafter referred to as "the Act of 1911") as altered by the Manchester Order 1880 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1880 by the Manchester Order 1884 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1884 by the Manchester Order 1893 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1893 by the Manchester Order (No. 1) 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1899 and by the Manchester Order 1904 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1904 (each of which Orders and Confirming Acts is hereinafter referred to as the Order or the Confirming Act of the year in which it was made or passed) and by certain other Local Acts and Provisional Orders which do not affect the subject-matter of this Order are in force in the City;

38 & 39 Vict.
c. clxi.
1 & 2 Geo. 5.
c. cviii.
43 & 44 Vict.
c. xxxvi.
47 & 48 Vict.
c. ccxv.
56 & 57 Vict.
c. cxxx.
62 & 63 Vict.
c. xxviii.
4 Edw. 7.
c. lxii.

And whereas by Section 57 of the Act of 1875 as altered by the Order of 1880 and by the Order of 1884 the Corporation were empowered to borrow for the purposes of their gas undertaking the sum of seven hundred thousand pounds;

And whereas by Article IX. of the Order of 1893 as altered by the Order of 1899 and the Order of 1904 the Act of 1875 the Confirming Act of 1880 so far as it related to the Order of 1880 and the Confirming Act of 1884 so far as it related to the Order of 1884 were altered so as to enable the Corporation with the sanction of the Local Government Board and subject to the provisions of the Order of 1893 to borrow for the purposes of their gas undertaking the sum of two million pounds in addition to the said sum of seven hundred thousand pounds;

And whereas by paragraph (B) of subsection (1) of Section 59 of the Act of 1911 the Corporation were empowered to borrow for and in connection with the purchase of land and easements for and the construction of the main drainage works authorised by the Act of 1911 the sum of one million pounds;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter and amend the Act of 1875 and the Act of 1911 as altered as aforesaid in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders

[Ch. cxiii.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.*

A.D. 1920, *Manchester Order.* that from and after the date of the Act of Parliament confirming this Order the Act of 1875 the Act of 1911 the Confirming Act of 1893 so far as it relates to the Order of 1893 the Confirming Act of 1899 so far as it relates to the Order of 1899 and the Confirming Act of 1904 so far as it relates to the Order of 1904 shall be altered so that the following provisions shall take effect that is to say:—

Additional borrowing powers for gas undertaking.

Art. I. Article IX. of the Order of 1893 Article I. of the Order of 1899 and Article I. of the Order of 1904 shall apply and have effect as if the total amount thereby authorised to be borrowed were the sum of three million pounds.

Additional borrowing powers for main drainage works.

Art. II. Section 59 of the Act of 1911 shall have effect as if in the paragraph lettered (B) of subsection (1) of that section the words "one million eight hundred and fifty thousand pounds" were inserted instead of the words "one million pounds."

Short titles.

Art. III. This Order may be cited as the Manchester Order 1920 and the Manchester Orders 1880 to 1904 and this Order may be cited together as the Manchester Orders 1880 to 1920.

Given under the Official Seal of the Minister of Health this Thirteenth day of May in the year One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF NEATH.

Neath Order. *Provisional Order for altering the Neath Corporation Gas Act 1874 and the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893.*

To the Mayor Aldermen and Burgesses of the Borough of Neath;—

And to all others whom it may concern.

WHEREAS the Borough of Neath (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (hereinafter referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

37 & 38 Vict.
c. c.

And whereas the unrepealed provisions of the Neath Corporation Gas Act 1874 (hereinafter referred to as "the Local Act") as altered by the Neath Orders 1893 to 1913 are in force in the Borough;

[10 & 11 GEO. 5.] *Ministry of Health Provisional.* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

And whereas by the Local Act the Corporation were empowered to purchase the gas undertaking of the Neath New Gas Company and to borrow with the sanction of the Local Government Board such sums of money as they required for the purposes of the Local Act with respect to gas not exceeding in the whole the sum of twenty thousand pounds in addition to the amount required for the purchase of the gas undertaking of the said company ;

And whereas by Article I. of the Neath Order 1893 (hereinafter referred to as "the Order of 1893") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893 (hereinafter referred to as "the Confirming Act of 1893") as altered by the Neath Order 1901 the Neath Order 1907 and the Neath Order 1913 which Orders were also confirmed by Parliament the Corporation were authorised with the sanction of the Local Government Board to borrow for the purposes of their gas undertaking on the securities therein mentioned sums not exceeding in the whole the sum of one hundred thousand pounds in addition to the sums which they were authorised to borrow by the Local Act as aforesaid ;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1893 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1893 so far as it relates to the Order of 1893 shall be altered so that the following provisions shall take effect that is to say :—

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1893 so far as it relates to the Order of 1893 shall have effect as if the words "one hundred and seventy thousand pounds" had been inserted in Article I. of the Order of 1893 instead of the words "twenty thousand pounds."

Art. II. This Order may be cited as the Neath Order 1920 and the Neath Orders 1893 to 1913 and this Order may be cited together as the Neath Orders 1893 to 1920.

Given under the Official Seal of the Minister of Health this
Tenth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920:

URBAN DISTRICT OF PAIGNTON.

*Paignton
Order.*

*Provisional Order for altering the Paignton Urban District
Council Act 1911.*

To the Urban District Council of Paignton ;—

And to all others whom it may concern.

63 & 64 Vict.
c. lxix.
1 & 2 Geo. 5.
c. liv.

WHEREAS the Urban District Council of Paignton (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Paignton (hereinafter referred to as "the District") and there are in force in the District the unrepealed provisions of the Paignton Urban District Water Act 1900 and the Paignton Urban District Council Act 1911 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed);

And whereas by the Act of 1900 the Council were authorised to construct and maintain reservoirs and other works for the supply of water as therein mentioned and by Part II. of the Act of 1911 to construct and use in connection with their water undertaking the additional line of pipes and other waterworks therein described and it was provided by Section 10 in the said Part II. that if the works by that Part authorised are not completed within ten years from the passing of the Act of 1911 the powers by that Act granted for the making thereof or otherwise in relation thereto shall cease except as therein mentioned;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter the Act of 1911 in the manner hereinafter set forth:

38 & 39 Vict.
c. 55.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1911 shall be altered so that the following provisions shall take effect that is to say:—

Extension of
time for con-
struction of
waterworks.

Art. I. Section 10 of the Act of 1911 shall have effect as if the words "fifteen years" were inserted therein instead of the words "ten years."

Short title.

Art. II. This Order may be cited as the Paignton Order 1920.

Given under the Official Seal of the Minister of Health this
Tenth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

WHITCHURCH AND DISTRICT JOINT
HOSPITAL DISTRICT.

A.D. 1920.

Provisional Order for partially repealing a Confirming Act.

*Whitchurch
and District
Order.*

To the Whitchurch and District Joint Hospital Board;—

To the Urban District Councils of Market Drayton Wem and
Whitchurch;—

To the Rural District Councils of Blore Heath Drayton Overton
Wem and Whitchurch (Salop);—

And to all others whom it may concern.

WHEREAS by the Whitchurch and District Joint Hospital Order 1904 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1904 (which Order and Act are hereinafter respectively referred to as "the Order of 1904" and "the Confirming Act") as adapted by the Whitchurch and District Joint Hospital Order 1914 (hereinafter referred to as "the Order of 1914") the Urban Districts of Market Drayton Wem and Whitchurch and the Rural Districts of Blore Heath Drayton Overton Wem and Whitchurch (Salop) were formed into a United District to be called the Whitchurch and District Joint Hospital District (hereinafter referred to as "the United District") for the purposes of the provision maintenance and management for the use of the inhabitants of those districts of a hospital or hospitals for the reception of cases of small-pox and provision was made for the constitution of the Whitchurch and District Joint Hospital Board (hereinafter referred to as "the Joint Board") consisting of members appointed by the Councils of the said Districts (hereinafter referred to as "the Constituent Authorities");

4. Edw. 7.
c. lxiv.

And whereas the Joint Board have provided a hospital at Prees Higher Heath in the Parish of Prees (which hospital with the lands buildings and all real and personal property appertaining thereto is hereinafter referred to as "the Hospital");

And whereas by an Agreement dated the Twenty-ninth day of September One thousand nine hundred and nineteen (hereinafter referred to as "the Agreement") the Joint Board have agreed that the Hospital should be transferred to the County Council of the Administrative County of Salop (hereinafter referred to as "the County Council") for the consideration and upon the terms and conditions specified in the Agreement;

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Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

*Whitchurch
and District
Order.*

And whereas it is expedient that a Provisional Order should be issued to repeal the Confirming Act so far as it relates to the Order of 1904 so as to enable the said transfer to be effected and so that the United District shall thereafter be dissolved and the Joint Board shall be abolished :

38 & 39 Vict.
c. 55.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the following provisions shall take effect that is to say:—

*Transfer of
property
debts and
liabilities of
Joint Board.*

Art. I.—(1) The Joint Board shall transfer the Hospital to the County Council for the consideration and subject to the terms and conditions specified in the Agreement.

(2) The Joint Board shall out of the sum received by them from the County Council as consideration for the transfer of the Hospital repay the outstanding balance of any loan raised by the Joint Board in respect of the Hospital and shall apportion the remainder of the consideration after payment thereof of the reasonable expenses payable by the Joint Board in respect of the transfer between the Constituent Authorities in the proportions which the number of inhabitants in each of the Constituent Districts respectively bears to the total number of inhabitants of the Constituent Districts and shall pay the sum so apportioned to each Constituent Authority to that Authority.

(3) For the purposes of this Article the number of inhabitants of the Constituent Districts and in each of the Constituent Districts shall be the number according to the returns of the last census prior to the commencement of this Order or in the case of the Urban District of Market Drayton and the Rural District of Drayton the number of inhabitants of each District as estimated by the Registrar-General on the basis of the Census of 1911.

(4) Each Constituent Authority shall apply any sum received by them in pursuance of subdivision (2) of this Article to any capital purpose which may be sanctioned by the Minister of Health.

Art. II. Before the First day of April One thousand nine hundred and twenty-one the Joint Board shall out of the funds in their hands or to be raised by means of contributions from the Constituent Authorities discharge all liabilities attaching to the Joint Board and if after full discharge of all their liabilities any balance of such funds shall remain they shall apportion the balance between and pay to

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiii.]
Orders Confirmation (No. 6) Act, 1920.

the Constituent Authorities the apportioned amount in the manner provided by subdivision (2) of Article I. of this Order.

Art. III. From and after the First day of April One thousand nine hundred and twenty-one the Confirming Act so far as it relates to the Order of 1904 shall be repealed the Order of 1914 shall be rescinded and the United District shall be dissolved and the Joint Board shall be abolished and cease to exist.

Art. IV. All books of accounts minutes of proceedings deeds papers and writings belonging to or under the control of the Joint Board shall be kept by and deposited with the County Council. Provided that the Constituent Authorities and the ratepayers of any of the districts of the Constituent Authorities shall at all reasonable times have the right of inspection and of taking copies of and extracts from any of the said documents.

Art. V. The accounts of the Joint Board and of their Committees and Officers if any shall be made up to the First day of April One thousand nine hundred and twenty-one and shall be audited in like manner and with the like incidents and consequences as if this Order had not been made:

Provided that any sum certified by the District Auditor to be due from any person shall be paid by that person to the County Council.

Art. VI.—(1) For the purposes of any settlement adjustment proceeding or matter under Section 304 of the Public Health Act 1875 arising out of anything incidental to or consequent upon this Order the Minister of Health may by order deal with any matter which under the said enactment may be dealt with by a Provisional Order.

(2) If in relation to any purpose of this Order any question or difficulty arises and the Minister of Health is satisfied that under the provisions of this Order the question or difficulty cannot otherwise be determined or removed the Minister may by order do anything which appears to him to be necessary for the determination of the question or for the removal of the difficulty.

Any order made by the Minister of Health in pursuance of this subdivision may modify any provisions of this Order so far as may appear to him to be necessary or expedient for carrying into effect the order made in pursuance of this subdivision.

Every order made in pursuance of this subdivision shall have effect as if it were enacted in this Order.

A.D. 1920.

*Whitchurch
and District
Order.*

Repeal of Confirming Act so far as it relates to the Order Dissolution of United District and abolition of Joint Board.

Custody of documents.

Audit of accounts of Joint Board.

Adjustment.

Determination or removal of questions and difficulties.

[Ch. cxiii.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 6) Act, 1920.

A.D. 1920.

*Whitchurch
and District
Order.*

*Inquiries and
expenses.*

Art. VII. Where the Minister of Health causes any local inquiry to be held with reference to any of the purposes of this Order the costs incurred in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Minister may determine for the services of any inspector or officer engaged in the inquiry) shall be paid by the County Council or by the Joint Board or by the Constituent Authorities or by such one of the Constituent Authorities and in such proportions as the Minister may direct and in the case of an Urban District Council shall be charged and defrayed as part of the expenses incurred by them in the execution of the Public Health Act 1875 and in the case of a Rural District Council shall subject to any power of the Minister to order the contrary be charged and defrayed as part of the general expenses of the Rural District Council under the said Act and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the County Council the Joint Board or any Constituent Authority shall be a debt due to the Crown from the County Council Joint Board or Constituent Authority.

Short titles.

Art. VIII. This Order may be cited as the Whitchurch and District Joint Hospital Order 1920 and the Whitchurch and District Joint Hospital Orders 1904 and 1914 and this Order may be cited together as the Whitchurch and District Joint Hospital Orders 1904 to 1920.

Given under the Official Seal of the Minister of Health this
Eighth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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